

**Tentative Rulings and Resolution Review Hearings**  
**November 4, 2024**  
**Department 64 (formerly Department 3)**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; [courtcall.com](http://courtcall.com)) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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**8:30 a.m. Law and Motion**

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**CHARLAND VS. ROSS STORES, INC, ET AL.**

**Case Number: 24CV-0205458**

**Tentative Ruling on Motion to Compel Arbitration:** This is a wage and hour action. Plaintiff Brooke Charland worked at Ross Dress for Less, in Redding. She was hired on April 30, 2023. Defendants Ross Stores, Inc. and Ross Dress for Less, Inc. seek to compel arbitration per the terms of a Dispute Resolution Agreement ("DRA") Plaintiff signed electronically as part of her onboarding process. No opposition has been filed.

Existence of Agreement. CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) "[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: "Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence." (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) *Gamboa v. Ne. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 164–65. The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

Here, Defendant has provided a copy of the DRA electronically executed by Plaintiff. Defendant has also submitted a Declaration of Dan Stock, the Senior Director of Human Resources Information Systems. The Declaration of Stock authenticates the DRA and provides detailed evidence regarding the standard employee onboarding process, the security of the online system used, and the method of execution. The Declaration also describes the process as it applied specifically to Plaintiff, including when she executed the DRA. Supporting exhibits are attached;

including screenshots of relevant portions of the online onboarding system. Defendants have carried their burden to demonstrate an agreement to arbitrate the controversy exists.

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*See Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219.) Here, no opposition has been filed and thus there is no challenge to the authenticity of the agreement. The moving party has met its burden and the Court is required to compel arbitration if the agreement is enforceable.

Once the Court “determines the agreement to arbitrate exists, it should then decide the other objections to its enforceability. The court must grant the petition “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (§ 1281.2.)” *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219. Plaintiff bears the burden of showing unconscionability by a preponderance of the evidence. *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468. Plaintiff has not opposed the Motion, and no unconscionability has been alleged. There is no evidence before the Court that Defendants have waived their right to compel arbitration, or that any other grounds exist for revocation of the agreement. The DRA will be enforced.

The Motion to Compel Arbitration is **GRANTED**. This matter is stayed pending the outcome of arbitration. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order. This matter is set for a review hearing regarding status of arbitration on **Monday, May 5, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the review hearing.

#### **IN RE: GOODWIN**

**Case Number: 24CV-0204974**

**Tentative Ruling on Petition for Change of Name:** Petitioner Linda Jeanette Goodwin seeks to change her name to Linda Jeanette Lovely-Goodwin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

#### **MORIN VS. ROSS STORES, INC., ET AL.**

**Case Number: 24CV-0205453**

**Tentative Ruling on Motion to Compel Arbitration:** This is a wage and hour action. Plaintiff Sabrina Morin worked at Ross Dress for Less, in Redding. She was hired on or about July 1, 2023. Defendants Ross Stores, Inc. and Ross Dress for Less, Inc. seek to compel arbitration per the terms of a Dispute Resolution Agreement (“DRA”) Plaintiff signed electronically as part of her onboarding process. No opposition has been filed.

Existence of Agreement. CCP § 1281.2 requires the Court to grant a petition to compel arbitration where it determines that an agreement to arbitrate the controversy exists. The court makes this determination in a summary process. (See § 1290.2.) “[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of